

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a EZ
CRUISE PARKING; LIGHTHOUSE PARKING, INC.; and
SYLVIA ROBLEDO d/b/a 81st DOLPHIN PARKING**

v.

**THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES and THE GALVESTON PORT FACILITIES
CORPORATION**

RESPONDENTS' REPLY BRIEF ON REMAND

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RESPONDENTS' PROPOSED SUPPLEMENTAL FINDINGS OF FACT

In accordance with the Honorable ALJ's August 30, 2022, Remand Reconsideration Scheduling Order, Respondent, The Board of Trustees of the Galveston Wharves, hereby includes and sets forth its proposed findings of fact pursuant to 46 C.F.R. 502.214:

1. The following Findings of Fact issued by the Administrative Law Judge, Initial Decision On Remand, dated January 13, 2017, remain uncontested and germane to the resolution of this matter, and are referenced herein for inclusion and are incorporated by reference as if fully set forth at length as part of Respondent's Supplemental Findings of Fact: AJF Findings of Fact Nos. 1-5, 9-11, 13-18, 19-20, 22-25, 27-46, 54-55, 57, 59, 63, 71-76, 78, 83.¹
2. The relevant period for the determination of reparations due to Complainant under all claims subject to this remand is June 16, 2011, to July 31, 2014. (See Order on Initial Decision on Remand at 39).
3. The definition of commercial passenger vehicle in Tariff Circular No. 6 did not change from December 17, 2007, to June 20, 2014. (CR/R 001 at 000019; CR/R 002 at 000096; and CR/R 003 at 000167).
4. The definition of ground transportation company in Tariff Circular No. 6 did not change from December 17, 2007, to June 20, 2014. (CR/R 001 at 000020; CR/R 002 at 000097; and CR/R 003 at 000168).
5. The definition of off-port parking user in Tariff Circular No. 6 did not change since 2006. from December 17, 2007, to June 20, 2014. (CR/R 001 at 000020; CR/R 002 at 000097; and CR/R 003 at 000169).

¹ In its Order on Initial Decision on Remand, the Commission adopted these findings of fact by holding, "The ALJ made eighty-four Findings of Fact in the I.D.R., all of which are supported by the record except for FF84, and the Commission adopts them," Order on Initial Decision on Remand dated April 16, 2021 at 18.

6. Under Respondent's tariffs a limousine was defined as:

LIMOUSINE means a motor vehicle operated for commercial purposes that shall not have a taximeter, which is a luxury sedan with a manufacturer's rated seating capacity of not more than fifteen (15) passengers that is used for the transportation of people.

(CR/R 001 at 000020; CR/R 002 at 000097; and CR/R 003 at 000169).

7. In order for any vehicle to access Respondent's Cruise Terminals to deliver and pick up passengers they had to have a port use permit. (CR/R 001 at CR/R 000016; CR/R 002 at 000091; and CR/R 003 at CR/R 000162).
8. Because all limousines were required to register for Port Use Permits and obtain decals from Respondent to be allowed access Respondent's terminals, these fees constitute a fee for access as well as the per trip access fees charged such users. (CR/R 001 at CR/R 000016; CR/R 002 at 000091; and CR/R 003 at CR/R 000162).
9. The term "Port Use Permit" was defined in the Port's Tariffs at all times between September 1, 2006, and July 31, 2014, as:

(18) PORT USE PERMIT means a valid (not suspended or revoked) and unexpired permit issued by the Port Director pursuant to this Tariff Item. A Port Use permit contains terms and conditions as described herein, or as may be amended from time to time. A Port Use Permit grants privileges (e.g., using Galveston Wharves property for commercial purposes, supplying services at the Galveston Wharves (Port of Galveston) for which fees are imposed. Both Port Use Permits and the more specialized contracts or leases mentioned in this Tariff are types of contracts.

(CR/R 001 at CR/R 000021; CR/R 002 at CR/R 000098; and CR/R 003 at 000170).

10. From October 1, 2006, through December 17, 2007, the permit fees and fees charged for decals issued limousines accessing the Port's Cruise terminals

Note A. A separate Port Use Permit must be obtained for each of the business categories, named above, in which any business entity is engaged.

Note B. Initial and annual license fee for Persons, as defined herein, who are independent owners of single taxicab vehicles, as defined herein, Mobile Food and/or Merchandise Vendors and Line Handling Companies will be \$50. Certain liability and other insurance requirements contained in Tariff Item 600 may be modified for the above users as deemed

necessary based on review of the applicant and type of business.

Note C. In addition to the annual Port Use Permit fee, ground transportation companies, as defined herein, accessing the Texas Cruise Ship Terminal on Galveston Island®, or the Texas Cruise Ship Terminal at Pier 27 (Cruise Ship Terminal Complex), shall be subject to the following decal and/or access fees for each vehicle that shall have such access:

Type of Vehicle and Vehicle Seating Capacity:	Decal and Access Charge:
Limousines	\$10.00 per decal per vehicle, annually

(CR/R_001 at CR/R 000017).

11. From December 17, 2007, through December 31, 2013, the permit fees and fees charged for decals issued limousines accessing the Port's Cruise terminals

Note A. A separate Port Use Permit must be obtained for each of the business categories, named above, in which any business entity is engaged.

Note B. Initial and annual license fee for Persons, as defined herein, who are independent owners of single taxicab vehicles, as defined herein, Mobile Food and/or Merchandise Vendors and Line Handling Companies will be \$50. Certain liability and other insurance requirements contained in Tariff Item 600 may be modified for the above users as deemed necessary based on review of the applicant and type of business.

Note C. In addition to the annual Port Use Permit fee, ground transportation companies, as defined herein, accessing the Texas Cruise Ship Terminal on Galveston Island®, or the Texas Cruise Ship Terminal at Pier 27 (Cruise Ship Terminal Complex), shall be subject to the following decal and/or access fees for each vehicle that shall have such access:

Type of Vehicle and Vehicle Seating Capacity:	Decal and Access Charge:
Limousine or Taxi and Taxicabs with Seating Capacity of nine (9) to fourteen (14) persons (**Except as noted in Notes D & E, below)	\$10.00 per decal per vehicle, annually and \$10.00 per Access I Trip
Limousines with Seating Capacity of not more than eight (8) persons	\$10.00 per decal per vehicle, annually

(CR/R 002 at CR/R 000094).

12. From November 21, 2013, the fees charged for decals issued limousines accessing the Port's Cruise terminals:

Note A. A separate Port Use Permit must be obtained for each of the business categories, named above, in which any business entity is engaged.

Note B. Initial and annual license fee for Persons, as defined herein, who are independent owners of single taxicab vehicles, as defined herein, Mobile Food and/or Merchandise Vendors and Line Handling Companies will be \$50. Certain liability and other insurance requirements contained in Tariff Item 600 may be modified for the above users as deemed necessary based on review of the applicant and type of business.

Note C. In addition to the annual Port Use Permit fee, ground transportation companies, as defined herein, accessing the Texas Cruise Ship Terminal on Galveston Island®, or the Texas Cruise Ship Terminal at Pier 27 (Cruise Ship Terminal Complex), shall be subject to the following decal and/or access fees for each vehicle that shall have such access:

Type of Vehicle and Vehicle Seating Capacity:	Decal and Access Charge:
Commercial Passenger Vehicle, Courtesy Vehicle, Shuttle or Limousine with Seating Capacity of less than fifteen (15) persons (**Except as noted in Notes D & E, below)	\$15.00 per decal per vehicle, annually and \$11.43 per Access I Trip

(CR/R 003 at CR/R 000165).

13. The permit/decal fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2011 was as follows:

2011	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/27/2011	Galveston Vehicle Escorts	\$120.00
2/2/2011	NIKKOS TRANSPORTATION	\$310.00
2/10/2011	ATLAS LIMO K.CLAYPOOL	\$70.00
2/10/2011	GREATER HOUSTON TRANS	\$395.00
2/10/2011	GREATER HOUSTON TRANS	\$115.00
2/11/2011	HARBOR EXPRESS SVS INC	\$280.00
2/11/2011	KARR LIMOUSINE SVS INC	\$190.00
2/28/2011	BLACK TIE LIMOUSINE	\$50.00
2/28/2011	CARLITOS TOWN CAR SERVI	\$50.00
3/28/2011	HOUSTON EXECUTIVE LIMO	\$150.00
4/11/2011	HOUSTON LIMO SERV	\$390.00
4/14/2011	AMERICAN TRANSPORTAION	\$80.00
4/15/2011	81ST DOLPHIN	\$80.00
4/15/2011	ENTERPRISE PKNG SERVICE	\$260.00
4/15/2011	C&S EXECUTIVE TRANSPOR	\$130.00
4/19/2011	AJ LIMO	\$110.00
4/26/2011	NIKKOS TRANSPORTATION	\$10.00
5/2/2011	ELITE LIMO	\$350.00

5/6/2011	TEXAS LIMO	\$150.00
5/11/2011	ACTION LIMO	\$150.00
5/11/2011	ACTION LIMO	\$250.00
5/19/2011	GALVESTON VEHICLE ESCO	\$10.00
6/2/2011	SAMS LIMOUSINE	\$170.00
6/3/2011	HORIZON COACH LIMOS	\$20.00
6/28/2011	MIKES LUXURY TRANSPORT	\$70.00
7/29/2011	ACTION LIMO	\$20.00
	Totals	\$3,890.00

(CR/R 004 at CR/R 000237; CR/R 078 at CR/R 000810 – 000811).

14. Prorating the fees paid for 2011 to June 16, 2011, to December 31, 2011, leaves 198 days remaining in that year or 54.25%, or \$2,110.19 applicable for 2011.
15. The permit/decal fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2012 was as follows:

2012	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/9/2012	GALVESTON VEHICLE ESCO	\$140.00
1/18/2012	GALVESTON LIMO	\$230.00
1/27/2012	MIKES LUXURY TRANSPORT	\$70.00
1/31/2012	A AMBASSADOR LIMO	\$620.00
2/1/2012	HARBOR EXPRESS SVCS	\$100.00
2/8/2012	81ST DOLPHIN	\$80.00
3/6/2012	GALVESTON VEHICLE ESCO	\$10.00
3/6/2012	FRANKS LIMO SEDAN	\$150.00
3/8/2012	A AMBASSADOR LIMO	\$30.00
3/9/2012	AMERICAN TRANSPORT	\$70.00
3/12/2012	HOUSTON EXECUTIVE LIMO	\$150.00
3/19/2012	BLACKHORSE LIMO	\$320.00
3/19/2012	CYPRESS TOWNCAR	\$350.00
3/21/2012	ONYX LIMO	\$300.00
3/21/2012	ULTIMATE LIMO	\$290.00
3/23/2012	ONYX LIMO SVCS	\$10.00
3/23/2012	CAREY OF HOUSTON	\$200.00
3/23/2012	EMERALD LIMO	\$310.00
3/28/2012	HOUSTON LIMO	\$280.00
3/28/2012	C&S EXECUTIVES	\$120.00
3/28/2012	REPUBLIC LIMO	\$60.00
4/3/2012	CHEAP TOWN CAR AND LIMO	\$300.00
4/5/2012	24 HOUR KATY	\$290.00
4/5/2012	SHOA ZURI	\$280.00
4/5/2012	AA CORP TRANSPORTATION	\$270.00
4/9/2012	PRIDE LIMO	\$310.00
4/9/2012	AFC CORP TRANSPORTATIO	\$600.00
4/12/2012	AJ LIMO	\$10.00
4/14/2012	A AFFORDABLE SERVICES	\$310.00
4/16/2012	KNIGHT TRANSPORT	\$120.00
4/16/2012	TEXAS LIMO	\$150.00
4/17/2012	AJ LIMOUSINE	\$90.00
4/20/2012	dunic limo	\$280.00
4/25/2012	EE LIMOS	\$280.00
4/30/2012	CTI TRANSPORTATION	\$330.00
	Totals	\$7,510.00

(CR/R 079 at CR/R 000814 – 000815).

16. The permit/decal fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2013 was as follows:

2013	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/10/2013	AJ LIMO	\$90.00
1/11/2013	KARR LIMO SVCS	\$240.00
1/11/2013	DUNIC LIMO	\$70.00
1/23/2013	BLACKHORSE LIMO AND CH	\$140.00
1/30/2013	CTI TRANSPORTATION	\$110.00
1/31/2013	S. HOUSTON LIMO, TC, & SU	\$260.00
1/31/2013	ACTION LIMO	\$250.00
1/31/2013	ACTION LIMO	\$250.00
2/3/2013	HOUSTON EXECUTIVE LIMO	\$150.00
2/3/2013	GALVESTON LIMO	\$170.00
2/4/2013	CAREY OF HOUSTON	\$200.00
2/14/2013	PRIDE LIMO	\$10.00
2/14/2013	SAM'S LIMO	\$190.00
2/14/2013	CYPRESS TOWNCAR	\$180.00
3/5/2013	LONESTAR LIMO	\$80.00
3/6/2013	C&S EXECUTIVE	\$130.00
3/6/2013	LUXIMO LIMO	\$260.00
3/25/2013	EMERALD LIMO	\$110.00
3/26/2013	KRYSTALIA LIMO	\$90.00
4/16/2013	LIMO & TOWN CAR SERVICE	\$310.00
4/23/2013	LONE STAR LIMO	\$10.00
5/19/2013	TOTALLY TX LIMO	\$140.00
5/23/2013	ROYAL LIMO & TOWN CAR	\$320.00
7/5/2013	ACTION LIMO	\$30.00
7/18/2013	KARR LIMO	\$20.00
8/5/2013	LIMO & TOWNCAR SRV	\$310
9/26/2013	81ST DOLPHIN S.ROBLEDO	\$80.00
	Totals	\$4200.00

(CR/R 080 at CR/R 000820 – 000821).

17. The permit/decal fees for limousine services and the vehicles used by those companies' fleets registered with Respondent in 2014 was as follows:

2014	9045-380-990-528	Security Cost Recovery - C/T - Permits
1/8/2014	81ST DOLPHIN	\$105.00
1/14/2014	Karr Limo	\$305.00
1/16/2014	Totally Texas Limo Service	\$175.00
1/16/2014	Royal Limo & Town Car	\$135.00
1/16/2014	Knight Transport	\$145.00
1/22/2014	American Transport Co	\$135.00
1/23/2014	HOUSTON EXECUTIVE LIMOS	\$185.00
1/31/2014	Galveston Limo/A Limo Service	\$185.00
2/19/2014	CYPRESS TOWN CAR & LIMO	\$135.00
3/6/2014	HOUSTON CITY LIMO AIM CHART	\$125.00
3/19/2014	CTI TRANSPORTATION LLC	\$165.00
4/16/2014	REPUBLIC LIMOUSINE	\$95.00
4/16/2014	BLACKHORSE LIMO	\$205.00
5/1/2014	C&S EXECUTIVE TRANSPORTAT	\$295.00
5/28/2014	AVANTI TRANSPORTATION	\$395.00
6/6/2014	TRANSGATE LIMO	\$360.00
6/6/2014	24 HR KATY LIMO	\$105.00
6/18/2014	CHERRY LIMO TRANSPORTATIO	\$115.00
7/9/2014	S HOUSTON LIMO & TOWN CAR	\$60.00
7/18/2014	ONYX LIMO SERV	\$115.00
7/22/2014	ACTION LIMO	\$545.00
7/24/2014	GURU RAMDASS	\$90.00
7/30/2014	Z LIMO SERV INC	\$390.00
7/30/2014	GULF COAST LIMO SERV	\$150.00
7/30/2014	Z LIMO SERV INC	\$390.00
7/30/2014	GULF COAST LIMO SERV	\$150.00
7/30/2014	PRIDE LIMO SERV	\$120.00
7/31/2014	MERLO'S LIMOUSINES	\$100.00
	Totals	\$ 5,475.00

(CR/R 081 at CR/R 000825 – 000826).

18. Respondent had begun charging access fees to limousine services again as early as January 1, 2014, and consistently in June 1, 2014, and continued to do so through July of 2014. Access and charges of limousines in June and July of 2014, are also evidenced in the individual reports for each of the limousine companies included in Respondent's Supplemental Appendix Nos. 014 - 076.
19. Prorating the fees paid for 2014 through July 31, 2013, equals 212 days in that year or 58.08%, or \$3,180.00 applicable for 2014.
20. The total registration and decal fees charged to limousines during the time period relevant to this proceeding, prorated for 2011 and 2014 is as follows:

2014*	\$3,180.00
2013	\$4,200.00
2012	\$ 7,510.00
2011*	\$ 2,110.19
Total	\$ 17,000.19

* Prorated

21. From 2011 through 2014 Complainant paid \$345 in permits/decal fees to Respondents. Prorating 2011 and 2014 reduces the applicable fees to:

2011	\$ 43.40
2012	\$ 80.00
2013	\$ 80.00
2014	\$ 60.94
Total	\$ 264.34

(CR/R 004 at CR/R 000237; CR/R 078 at CR/R 000810 – 000811; CR/R 079 at CR/R 000814 – 000815; CR/R 080 at CR/R 000820 – 000821; CR/R 081 at CR/R 000825 – 000826).

22. Prior to 2008, the Wharves invoiced limousines accessing the Cruise Terminal. However, with a few exceptions, limousines are typically from out of town and access the terminal irregularly; some accessed the Cruise Terminal two times a week while others did so two times a year. Compared to

local users, such as the Complainants, overall access by limousines to the Cruise Terminal was quite small. (CR/R008 at CR/R 000251).

23. Historically, it the Port determined that it had been difficult to get limousines to pay these fees. Attempting collection efforts for such small fees was deemed not to be economically feasible by the Port. (CR/R008 at CR/R 000251).
24. Limousines business differ from Complainants in that they do not provide for on-site parking during customer cruises, they infrequently access the terminals and normally bring in customers from outside the City of Galveston. Id.
25. Hurricane Ike devastated Galveston Island in September of 2008. Id.
26. After the Port resumed cruise operations the individual at the entrance of the cruise terminals failed to record access by limousines. Id.
27. This error was not discovered until May of 2014 when the Port conducted a study of traffic to, and fees charged for access to the terminals. (CR/R 008 at CR/R 000251 – 000252). There is no evidence of an intentional effort by Respondent to not charge limousines the additional access fee otherwise due under the Tariffs.
28. Following the discovery of this error in May of 2014, the Port corrected this and began charging limousines as of June 1, 2014. Id.
29. Several limousines were charged fees in 2014 prior to June 1, 2014. (CR/R 022 at CR/R 000558; CR/R 027 at CR/R 000575; CR/R 031 at CR/R 000590; CR/R 044 at CR/R 000654; CR/R 075 at CR/R 000793).

30. From January 1 to June 30, 2014, Respondent charged registered limousine services the following access charges:

Date	Name	Amount
1/27/2014	Sam's Limousine	\$600.00
3/31/2014	Karr Limo	\$ 150.00
4/30/2014	C&S Exec. Transp.	\$ 50.00
4/30/2014	Galveston Limousine Service	\$ 400.00
6/17/2014	Karr Limo	\$ 100.00
6/17/2014	Galveston Limousine Service	\$ 400.00
6/19/2014	24 HR. Katy Limousine	\$ 50.00
6/19/2014	AA Corporation	\$ 60.00
6/19/2014	Absolute Luxury Limousines	\$ 10.00
6/19/2014	Black Tie Limousine	\$ 10.00
6/19/2014	Blackhouse Limo	\$ 10.00
6/19/2014	Colony Limousine	\$ 40.00
6/19/2014	Devine Towncar & Limo	\$ 10.00
6/19/2014	Elite Limousines of Houston	\$ 10.00
6/19/2014	Extreme Elegance	\$ 10.00
6/19/2014	Houston Express Limo	\$ 10.00
6/19/2014	Karr Limo	\$ 50.00
6/19/2014	Superior Limousine & Transp	\$ 10.00
6/19/2014	Town Car Limo	\$ 10.00
6/30/2014	24 HR. Katy Limousine	\$ 20.00
6/30/2014	Absolute Luxury Limousines	\$ 10.00
6/30/2014	Abiding Limousine	\$ 20.00
6/30/2014	Action Limousine	\$ 100.00
6/30/2014	AIM Limousine	\$ 20.00
6/30/2014	American Transport	\$ 9.00
6/30/2014	Blackhouse Limo	\$ 20.00
6/30/2014	C&S Exec. Transp.	\$ 20.00
6/30/2014	Dimensions by Dan	\$ 20.00
6/30/2014	Elite Limousines of Houston	\$ 10.00
6/30/2014	Karr Limo	\$ 60.00
6/30/2014	Onyx Limousine Service	\$ 40.00
6/30/2014	Space Town Transportation	\$ 20.00
7/31/2014	ABIDING LIMOUSINE	\$20.00
7/31/2014	ACTION LIMOUSINE, INC.	\$20.00
7/31/2014	AIM LIMOUSINE	\$20.00
7/31/2014	AMERICAN TRANSPORT	\$40.00

7/31/2014	AIRPORT TRANSPORTATION	\$10.00
7/31/2014	BLACKHORSE LIMO	\$10.00
7/31/2014	CORPORATE LIMOUSINE	\$10.00
7/31/2014	MERLO'S LIMOUSINES	\$10.00
7/31/2014	ONYX LIMOUSINE SERVICE	\$30.00
7/31/2014	SPACE TOWN	\$20.00
	TRANSPORTATIO	
7/31/2014	SOUTH HOUSTON LIMOUSINE	\$10.00
7/31/2014	TOTALLY TEXAS LIMOUSINE	\$20.00
7/31/2014	24 HR. KATY LIMOUSINE	\$10.00
7/31/2014	AMERICAN STANDARD	\$10.00
	LIMOUSIN	
7/31/2014	SHIF LIMOUSINE	\$10.00
7/31/2014	Z LIMOUSINE SERVICES INC.	\$60.00
	Total	\$2,669.00

(CR/R_081 at CR/R 000822 – CR/R 000825).

31. During the time period including June 2011 through June 30, 2014, the \$8 per space per month fee was applied as follows:

Those Off-Port Parking Users, as defined herein, in operation and accessing the Texas Cruise Ship Terminal on Galveston Island®, or the Texas Cruise Ship Terminal at Pier 27, collectively the Cruise Ship Terminal Complex, as of August 15, 2006 shall, in lieu of the Access/ Trip fee, be subject to a monthly Access Fee equal to ***the amount of \$8.00 per parking space located in the Off-Port Parking User's parking facility.*** . . .

(CR/R 002 at CR/R 000094).

32. The \$8 per space fee for spaces located in the Off-Port Parking User parking facility such as the one Complainant operated was a negotiated fee which arose out of Complainant and other Off-Port Parking Users refusal to pay a per trip charge to the Port during 2005 through 2006. (CR/R 009 at CR/R 000346 – 000347).
33. The \$8 per space rate charged to Complainant resulted in significant cost savings to her during the years. (CR/R 009 at CR/R 000353).
34. In 2014 Complainant's monthly fee increased to \$780 due to her admission that she was using 96 spaces per month. (CR/R 013 at CR/R 000428).

35. From July of 2005 through July of 2006 Complainant accessed the cruise terminals with its shuttles an average of 224 times per month which would have resulted in total access fees at the then in effect tariff of \$2,240.00. (CR/R 82 at CR/R 000828).
36. The \$400 monthly flat fee rate, if applied to July 2005 through July 2006 would be the equivalent of only charging Respondent the sum of \$1.80 per trip. Id.
37. The Port's expert Jeffery Compton opined using access numbers for Complainant in 2014 that in two months alone, Complainant saved over \$5,790.00 with the \$8 per space fee compared to the per trip rate charged others in the Tariffs:

81st Dolphin

A B = A x 10			C D = C x 8		E = B - D
Month	Trips per Month (Note E)	Access Fee at \$10/Trip	Parking Spaces per Lot (Note F)	Access Fee at \$8/Parking Space	Savings Under Fixed Rate of \$8/Parking Space
Oct-14	385	\$ 3,850	135	\$ 1,080	\$ 2,770.00
Nov-14	410	\$ 4,100	135	\$ 1,080	\$ 3,020.00
		<u>\$ 7,950</u>		<u>\$ 2,160</u>	<u>\$ 5,790</u>

(CR/R 009 at CR/R 000362).

38. In October and November Complainant was under the new September 2014 Tariff and charged on a per trip basis the same as all other users of the Port. (CR/R 008 at CR/R 000250).
39. Had Complainant still been charged the flat rate for October and November of 2014, \$780 per month, the average fee paid by Complainant would have been \$1.96 per access (795 trips divided by two months of flat rate totaling \$1,560.00).
40. In 2006 Complainant realized savings of \$13,910.00 from the \$8 per space fee. CR/R 009 at CR/R 000361).
41. In 2005 and 2006 Complainant's shuttles accessed the terminals an average 224 times a month. (CR/R 082 at CR/R 000828).

42. Using Complainant's 2006 and 2014 documented access frequency as a minimum guide Complainant realized a minimum savings from June 2011 through June 2014 between \$41,700 (3 years based on 2016 frequency) to \$104,220 (3 years based on 2014 frequency average per month). CR/R 009 at CR/R 000361 – 000362).
43. Complainant waived and did not appeal the Commission's rulings regarding the charging of the \$8 per space fee or the savings realized by Complainant. (See Order on Initial Decision on Remand at 31.)
44. From June 2011 through December 2011, Complainant Sylvia Robledo dba 81st Dolphin Parking was invoiced \$2,800.00 (7 months @\$400 per space per month based on 50 spaces). CR/R 010 at CR/R 000379 – CR/R 000385). Prorating June of 2011, the \$400 fee applicable to June 16, 2011, through June 30, 2011 (15 of 30 days) was \$200.00. This resulted in a total charge of \$2,600.00 during the relevant period of time for that year.
45. From January 2012 through December 2012, Complainant Sylvia Robledo dba 81st Dolphin Parking was invoiced \$4,800.00 (12 months @\$400 per space per month based on 50 spaces). (CR/R 010 at CR/R 000386 – 000397).
46. From January 2013 through December 2013, Complainant Sylvia Robledo dba 81st Dolphin Parking was invoiced \$4,800.00 (12 months @\$400 per space per month based on 50 spaces). (CR/R 010 at CR/R 000408 – 000409).
47. From January 2014 through July 30, 2014, Complainant Sylvia Robledo dba 81st Dolphin Parking was invoiced \$5,376.00 (1 month @ \$8 per space per month based on 50 spaces, and 5 months @ \$8 per space based on 96 spaces). CR/R 010 at CR/R 000410; CR/R 011 at CR/R 000411 – CR/R 000415).

48. The total amount invoiced Complainant by Respondent from June 16, 2011, through July 31, 2014, totaled \$17,566.00.
49. Though Complainant was only charged for 50 lots from June 2011 to February of 2014, Complainant admitted that her lot actually had 135 spaces. (CR/R 013 at CR/R 000428).
50. Complainant stated in her deposition that because she did not fill up her lot, she only used 50 spaces, (CR/R 013 at CR/R 000428) even though the Port's Tariff was based on the number of spaces in her lot, being 135. (CR/R 002 at CR/R 000094).
51. Prior to this Complainant attempted to have Respondent only charge her for 30 of the 135 spaces but was unsuccessful. (CR/R 013 at CR/R 000450).
52. Complainant agreed in 2014 to increase the spaces charged to 96 from 50 increasing the flat fee from \$400 to \$780 per month. (CR/R 013 at CR/R 000428 and CR/R 011 at CR/R 000411 – 000415).
53. A 2014 aerial photograph of Complainant's lot reflects over 100 cars on her lot, even though she was only paying for 96 cars. CR/R 013 at CR/R 000475 and CR/R 013 at CR/R 000428 – 000430).
54. The difference between the \$17,576.00 charged to Complainant under the \$8 per space per month tariff rate and the \$2,669.00 access fees charged to limousines during that time period is \$14,907.00.
55. The total permit or decal fees charged to registered limousines to allow them to access Respondent's Cruise Terminals (\$16,835.85 after excluding amounts paid by Complaint for these fees) and the access fees charged to limousines during the time relevant to this matter (\$2,669.00) totals \$19,504.85.
56. The difference in total fees charged to Complainants to access the terminals during the relevant period, \$17,576.00, and the total fees charged to limousines to access the terminals during the

relevant period is \$1,928.85 more charged to limousines than Complainants during the relevant period.

57. In June and July of 2014 limousines accessed the cruise terminals a total of 129 times (extrapolating the fees charged limousines for those months and the per trip fee set forth in the tariffs).

58. If limousines had been charged the same per trip average fee that the flat rate charged to Complainant then the limousines collective would have been charged between \$232.20 to \$252.84 per month collectively or \$2,786.40 to \$3,034.08.

59. In October and November 2014 Complainant accessed the cruise terminals 795 times.

60. Based on those numbers Respondent typically monthly accessed the terminal over 312% more times than all limousines registered with Respondent.

ARGUMENT AND AUTHORITIES

1. Procedural Background

- On April 16, 2021, the Federal Maritime Commission (“FMC” or “Commission”) issued its Order on Initial Decision on Remand (“OIDR”) in this matter.
- On April 20, 2021, the ALJ issued an Order Requiring Joint Status Report to establish a briefing schedule for the parties on the narrow issue of reparations set forth in the OIDR.
- On June 29, 2021, Complainants filed their Brief on Limited Reparations Issue on Remand. Complainants subsequently filed an amended brief the following day.
- On July 30, 2021, Respondent filed its Response to Complainants’ Amended Brief on Limited Issue on Remand.
- On May 17, 2021, Respondent filed its Verified Petition for Reconsideration and Unopposed Motion for Stay of Proceedings.

- On June 2, 2022, the Commission issued its Order Granting in Part and Denying in Part Petition for Reconsideration. (“CRRO”).
- On August 30, 2022, this Honorable ALJ issued his Remand Reconsideration Scheduling Order.
- On September 30, 2022, Complainant filed its Brief on Limited Reparations Issue on Remand.

2. Statement of No Waiver of Right to Appeal

This brief is submitted subject to and without waiving or limiting Respondents’ objections to and disagreement with or Respondent’s right to appeal the Commission’s Order on Initial Decision on Remand and the subsequent order regarding Respondent’s Petition for Reconsideration. To the extent anything in this brief submitted on the orders of the Commission and this Honorable Judge would be argued to be a waiver of any kind, then solely for purposes of preserving its rights Respondent incorporates herein all other pleadings and argument of Respondent filed with the Commission regarding this dispute.²

3. The Measure of Damages has Neither been Agreed Upon Nor Established

Every single order issued in this proceeding has found that Complainant has not established any direct measure of traditional damages resulting from the limousine issue. That is, there is no proof of economic loss outside the payment of these access fees. The Commission directed this remand to determine the proper measure of damages or reparations. If this issue were settled, the Commission would not have issued such a direction.

² Respondent has numerous objections to the Commission’s Order on Initial Decision on Remand. For example, while labeling the error on the part of Respondent with regard to charging limousines a separate fee for access, the Commission failed to articulate any standard for unreasonableness. It has been black letter law that only “undue or unreasonable preferences and prejudices would be violative of the Prohibited Acts.” *Seacon Terminals, Inc. v. The Port of Seattle*, 26 S.R.R. 886, 900 (FMC 1993). No standard for “undue or unreasonable” is articulated in the Commission’s rulings. Other than articulating a punitive no-fault, strict liability to all clerical errors no marine terminal operator can review that decision and determine where the line to “undue or unreasonable” lays with regard to their operations. The lack of a standard then turns the Commission’s self-avowed policy to defer to the discretion of a marine terminal operator in its operations into a problematic roadmap for marine terminal operators. But if every possible error leads to penalties, no marine terminal operator can safely operate.

Complainant offers no argument for determining a proper measure of damages in this proceeding. Complainant incorrectly and disingenuously asserts that “Respondent admits that Complainant is due reparations in the amount of \$14,704.00,” suggesting that Respondent has thus admitted or somehow waived the issue of the measure of damages or reparations. (Compl. Brief at 15.) The Brief referred to by Complainant was one directed to be filed by the Commission and this Honorable Judge prior to the resolution of Respondent’s Petition for Reconsideration. At that time the measure of damages held to be the law of the case was based on Judge Guthrie’s dicta. The fact that Respondent was required to file its Brief on Reparations based on the Commission’s Order on Initial Decision on Remand while it was seeking reconsideration of that decision did not constitute an agreement or waiver of its rights or the issues raised in Respondent’s Petition for Reconsideration. In this brief on remand regarding reparations Respondent did not agree on the measure of damages. Instead, Respondent plainly and categorically stated that:

“This brief is submitted subject to and without waiving or limiting Respondents’ timely filed Verified Petition for Reconsideration and Motion for Stay of Proceedings, filed on June 1, 2021 (“Petition for Reconsideration”), which remains pending before the Commission, and the other pleadings and argument filed with the Commission regarding this dispute.”³

In its Order Granting in Part and Denying in Part Petition for Reconsideration dated June 2, 2022 (Reconsideration Order), the Commission agreed with Respondent that prior discussion of the measure of damages for any reparations allegedly due Complainant were dicta:

“The Board correctly identifies the ALJ’s statements on reparation calculations as dicta which it was not required to challenge in exceptions to the Initial Decision on Remand. Because the method for calculating reparations was not fully addressed earlier, the parties should have an opportunity to do so on remand.”

(Reconsideration Order at 16.) Subsequently, the Commission and this Honorable Judge directed the parties to fully brief this issue. Accordingly, the standard, methodology and rationale for any measure of

³ RESPONDENT THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES’ RESPONSE TO COMPLAINANTS’ AMENDED BRIEF ON LIMITED REPARATIONS ISSUE ON REMAND dated August 5, 2014 at page 1.

reparations must be determined at this stage.

Complainant failed to brief this issue except in passing with the argument that due to the procedural status of Respondent's prior Brief the issue is settled, and Respondent has essentially waived any argument. The Reconsideration Order and this Honorable Judge's Scheduling Order of August 30, 2022, were neither frivolous nor surplusage. The fact is that the Commission has yet to promulgate a one size fits all measure of damages in a so-called discrimination case involving the transport of passengers as "cargo" using this particular fact situation.

When Judge Guthridge recited the *Ceres II* decision on the measure of damages his reference was in passing and *dicta*. The Commission agreed and acknowledged this *dicta* and issued a remand for this Court to review and determine the measure of damages. Complainant fails to do anything other than to recite a few soundbites from *Ceres II*. A vigorous review of law and applicable facts is required.

4. Ceres II Standards Are Not Directly Applicable to the Facts of This Proceeding

Complainant relies on the "rate differential reparations" standard utilized in *Ceres Marine Terminals, Inc. v. Maryland Port Admin.*, 29 S.R.R. 356, 374 (FMC 2001) (*Ceres II*) as a one-size fits all damage model. This is misplaced. First, in a subsequent decision by the commission *Ceres Marine Terminals, Inc. v. Maryland Port Admin.*, Order, Docket 94-01 (2004), the Commission reversed its prior decisions against the Maryland Port Administration on the grounds that the MPA had "adequately demonstrated that it is an arm of the State of Maryland, and that it is immune from Ceres' complaint. (*Id.* at 36.) This had the effect of rendering the entire proceeding and all rulings of law regarding the MPA's liability to Ceres Marine Terminals a nullity as the Commission never had jurisdiction to consider the case. Further, *Ceres II* was a lease case and the damage model used in that case, before being voided due to immunity issues, dealt with comparing lease rates for similar leases between two different clients of the Maryland Port Administration.

The facts in this proceeding are unique. In fact, so unique that it does not appear that a similar set of facts involving access to a cruise terminal to drop off passengers has ever been previously litigated. In its Order Affirming Initial Decision's Dismissal of Complaint (OAIDDC) the Commission characterized this case as a "cargo" case. The Commission stated that the "cargo" being transported is cruise passengers, and the service at issue is access to the terminal to drop off and pick up cruise passengers." (OAIDDC at 18.)⁴ The distinction in this case, however, is that there are no charges involved based on the quantity of the cargo.

The reality is that the amount of cargo is not determinative of the rates charged in this proceeding. The fee for Complainant is simply based on the number of spaces used in her parking lot for customers. The registration and decal fees charged to Complainant were based on the number of vehicles registered for access, without regard to whether any of those shuttles actually accessed the terminal. The number of passengers and the number of shuttles entering the terminal had no bearing on the fees charged. This gave Complainants a benefit not accorded to other entities. In his Initial Decision Judge Guthrie noted that

"Whether a Complainant's shuttles made one hundred trips or one thousand trips in a month, the Complainant would pay the same access fee. As a result, delay for cruise passengers was reduced."

(Initial Decision at 33.) This fact has never been refuted or repudiated.

For limousines, so long as they carried 15 persons or fewer, the number of passengers was also not

⁴ In that order the Commission acknowledged the fee structure involving limousines and took no issue with the Port's rate practices:

From December 17, 2007, to July 1, 2014, limousines were charged a per trip fee if they had a seating capacity of more than nine persons, with the amount varying depending on the vehicles' seating capacity. FF 50, 65. From July 1, 2014, onward, all limousines were charged a per trip fee, with the amount depending on the seating capacity. See FF 65.

Id. at 19. Complaint's flat fee during the period relevant to this remand proceeding did not vary by size or capacity of its shuttles. Complainant could bring one customer or a hundred on each trip with no difference in charge. The limousines at issue here were, by definition under the tariff, limited to those with a capacity of under 9 persons. If a limousine brought two people to the terminal twice in a single month, they were to be charged twice. If Complainant brought 100 people to the terminal 100 times in a month, they were charged the same flat rate.

determinative. The fee schedule for registration and decals was also based on the number of vehicles registered for access regardless of whether the vehicles actually accessed the terminals.

Complainant's flat fee during the period relevant to this remand proceeding did not vary by size or capacity of its shuttles. Complainant could bring one customer or a hundred on each trip with no difference in charge. The limousines at issue here were, by definition under the tariff, limited to those with a capacity of under 9 persons. (CR/R 002 at 000094). If a limousine brought two people to the terminal twice in a single month, they were to be charged twice. If Complainant brought 100 people to the terminal 100 times in a month, they were charged the same flat rate. The rates, enforced or not, are not completely congruous or similar. Likewise, as the record reflects Complainant's taking advantage of this unlimited access privilege far surpassed anything that would have been charged to limousines.

The facts are that based on the available data for Complainant's access, they were charged an average between \$1.80 and \$1.96 for each time accessing the terminals with one of their shuttles during this time. (RPFF 36, 39.) If the limousines, which showed an average 129 monthly trips (RPFF 57), had been charged that same rate the fees as Complainants they would have collectively incurred between \$232.20 to \$252.84. (RPFF 58.) This would result in a more realistic comparison of rates charged per trip. Otherwise, the Port is being penalized for the equivalent of phantom access by limousines without proof they occurred. Even so, however, this would not equate the usage by Complainant compared to limousines.

The rate of Complainant's access to the terminal based on that flat rate was substantial when compared to limousines. As shown with the evidence in the record, Complaint's shuttles accessed the terminals on a monthly basis more times that all limousines together. By October and November of 2014 Complaint's shuttles accessed the terminals more than 300% more than all the limousines combined. (RPFF 59.) As noted in the record, limousine use was sporadic and infrequent ranging from one or two times a year to

one or two times a month.⁵ (RPFF 22.)

If the cargo were potatoes and Complainant were allowed to unload unlimited amounts of potatoes for a flat monthly fee while other carriers were charged an individual rate per pound, the rates would not be comparable for purposes of a one size fits all damage model. This would be compounded if the facts showed that the flat rate carrier unloaded more pounds than all the other carriers put together on a monthly basis. Attempting such a comparison in a vacuum does not yield a result which could be supported on appeal. Likewise, if one carrier charged a flat rate had the fee based on the type of vessel used rather than the cargo and the other carriers were instead charged a fee for registering the vessels berthing at the Port the two rates are not economically equivalent for comparison. What is needed is a methodology to determine the economic equivalency of the total rates charged comparing the relative use of the port facilities.

Complainant demanded this flat rate and refused to pay any other rate. Now they demand that they should have been allowed free access to the terminals. Complainant's owner, Sylvia Robledo said as much in her deposition

Q. Deep down, you don't want to be charged anything, do you?

A. No.

(Resp. App. No. 13, at Resp.App.002320.) Comparing and equating the flat rate with a per trip charge and deeming them equivalent for damage purposes is incorrect and legally unsupportable. The rates were based on different formulas and criteria. Further, as the decal discussion noted below demonstrates, limousines were charged a fee to access the terminals through the decal and registration fees.

If the rate charged to Complainant were extended as a per trip rate, based on Complainant's

⁵ Because limousines had to register and pay a decal for this access during the time relevant to this proceeding, there may well have been some companies that paid for this base access fee in the event one of their sedans would be booked by a customer to go to the terminal. As Mr. Murchison noted if the limousine didn't have a decal in advance, they had to drop off their customers on the street outside the terminal. (Resp. Suppl. App. 8 at Resp. App. 002086.) This was not beneficial to the movement of traffic and passengers through the terminal. Id.

available historical access, the rate would have been between \$1.80 and \$1.96 per trip. If limousines had been charged the same per trip average fee that the flat rate charged to Complainant, then the limousines collectively would have been charged between \$232.20 to \$252.84 per month or \$2,786.40 to \$3,034.08 annually. (RPFF 56, 57.) The history of Commission rulings is devoid of a model that fits the economic realities of this factual situation.

5. Decal Fees Charged to Limousines Were User Fees to be Factored in Any Reparations Determination

Complaint incorrectly and smugly argues that *"the parties are in agreement that decal fees impart no effect on the reparations owed to Complainant."* (Compl. Brief at 18.) What Respondent noted was that Complainant was *"not due any reparations based on 'decal fees.'"* (Resp. Amended Brief on Reparations at page 8.) Respondent also noted that it was unclear as to the issue raised by the Commission involving these fees. The issue was not briefed by either party and are now directed to do so.

The parties do agree that Complainants have no claim for additional reparations based on the decal fees. They paid a total of \$385.00 during the reparations period set by the Commission before prorating those fees for 2011 and 2014. However, the issue raised by both the Commission and this Honorable Court, both of whom directed the parties to brief this issue, is now apparent. Decal fees are in fact a user fee under the Tariff and were, without dispute, charged to limousines. They should be factored into any reparation calculations.

Limousines were charged to register and obtain decals for their vehicles. The Port's tariff states that no company can access the Port's terminals to drop off passengers without registering and obtaining a decal. As regard to these limousines (as such vehicles are defined in the tariff) these fees became the access fees due from the companies to gain access to the terminals. If they did not pay for this access they could not enter the terminals to drop off passengers.

The registration and decal fees paid by these limousine companies were effectively access fees.

This is why the Commission identified them as an issue in this proceeding. For a limousine to access the terminals they had to pay the registration and decal fees. The limousines cannot get the decals without first registering their owners who must then obtain decals for each vehicle in their fleets which might seek to access the terminals. There is no dispute that Limousine services were charged and paid these fees. If these limousines were also not being charged the additional per trip fee, then these registration and decal fees were the fees charged to limousines for access and must be considered in any damage equation.

Using the measure of damages described in dicta in Judge Guthrie's Initial Decision on Remand, the reparations which can be claimed by Complainant would be the difference in the flat rate access fee paid by Complainant and the essential flat rate access fees paid by the limousines for registration and decals for their vehicles. However, even this comparison is not fully equivalent to sustain justification on appeal.

From June 16, 2011, to July 31, 2014 (dates which Respondent disputes as accurate) Complainant paid \$17,760.00 total in flat rate access fees and \$345.00 in registration and decal fees, for a total of \$18,015.00. Collectively, the limousines paid \$21,000.00 in registration and decal fees during 2011 to 2014. Prorating these fees to only include June - December of 2011 and January to July of 2014, these fees would total \$17,000.19.

As noted above Complainant accessed the terminals an average of 397.5 times a month in 2014. During those same months, limousines accessed the terminal only 125 times a month. From July of 2005 through July of 2006 Complainant accessed the cruise terminals with its shuttles an average of 224 times per month which would have resulted in total access fees of \$2,240.00 per month at the then in effect tariff. (PSFF 34.) By 2014, Complainant accessed the terminals over 318% more a month alone than all limousines combined. If Complainants accessed the terminals more than all limousines combined for their flat fee, then any damage model must compare the total of access fees paid by the limousines, that is their

registration and decal fees.⁶

6. Decal Fees Were the Access Fees Charged to Limousines from June 16, 2011, through May 31, 2014

The Commission incorrectly held in its Order on Initial Decision on Remand that the reparation period extended through July 31, 2014. The Commission originally held that:

“Moreover, even after Respondents discovered the problem as part of a study, they did not correct it for Santa Fe Discount Cruise Parking v. the Board of Trustees 31 several months. See Respondents’ App. at 2084, 2086 (Murchison Aff. ¶¶ 13, 23).”

(OIDR at 30-31.) The Commission then assumed the end date for reparations was August 1, 2014. This was an arbitrary determination not supported by the record.

As the record reflects robust charging of limousines began again in May of 2014. Complainant suggests without proof that this was “sporadic.”⁷ However, when reviewing the charges to limousines evident in the record, the charges were clearly being charged. The months prior showed little in the way of charges. In June of 2014 that changed. The record clearly sets forth the fact that Limousines sporadically accessed the terminals, unlike Complainant which accessed the terminals hundreds of times a month for their flat fee. Some limousines access the terminal twice a month and others twice a year. (Resp. Suppl. App. No. 8).⁸ Comparing pre- June 2014 billings with those of June and July 2014 shows that limousines were charged. This evidence, when presented to the Commission on Reconsideration prompted this issue to be reopened on remand.

From June of 2011 through July 31, 2014, the Port charged limousine companies a total of \$17,000.19 prorated in registration and decal fees for access to the terminals. (PPRR 19.) From January 1

⁶ There are no claims and no support that Complainant’s total fees must be measured by each individual limousine resulting in multiple recoveries for Complainant. Likewise, there is no legal support for the proposition that if a single limousine had inadvertently not been charged during the relevant time Complainant should have been given free access to the terminals.

⁷ Complainant offers nothing but speculation to rebut the numerous limousine charges that began during this period.

⁸ This clearly undercuts the Commission’s rulings that the Port waited months to fix the issue on discovery, an incorrect assumption which was used by the Commission to justify holding a clerical error to be a violation of the Shipping Act.

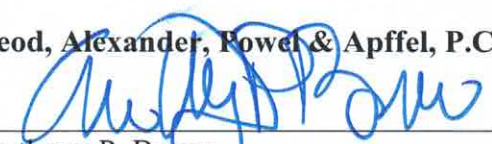
through July of 2014, the Port charged limousines the scheduled tariff access fee of \$2,669.00. (RPFF 17.) This totals \$19,678.19 charged to limousines during this time period for access to the terminals. This would be in excess of the amounts paid by Complainant for superior and more frequent access during this time, including their registration and decal fees. As the record reflects, Complainant's shuttles accessed the terminals more than 300% times compared to all limousines put together. Using this methodology to measure reparations in this instance equalizes the usage and access of the respective users at issue.

CONCLUSION

The above brief details the most proper and appropriate measure of reparations. This reflects that Complainant actually paid less during the relevant time period than limousines which thus negates their claim to reparations. The facts also demonstrate that the Port did restart the charging of limousines long before the August 1, 2014, date arbitrarily set by the Commission in its Order on Initial Decision on Remand but then rejected in its partial grant of the Port's Petition for Reconsideration.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I electronically filed this document on this **31st day of October, 2022**, and that a true and correct copy of the foregoing was served on all counsel of record, as indicated below:

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